

epochal events have fared no better. Justices G.T. Nanavati and U.C. Banerjee came out with completely different findings into the burning of the Sabarmati Express in Godhra. Justice B.N. Srikrishna submitted his report on the 1992-93 Mumbai riots that followed the Babri demolition after five years, but his findings have neither been accepted nor acted upon by successive Maharashtra governments.

The reasons are obvious. Under the Commissions of Inquiry Act, 1956, an inquiry is not a court of law

and the comfortable truth is that like senior bureaucrats who retire, judicial commissions, in many cases, have become a sinecure for retired judges. Judges heading commissions, mostly retired, get all facilities a sitting judge is entitled to. Apart from the salary and perks, they also get support staff.

Former CJI J.S. Verma is convinced that judicial inquiries are valid only if the reports are submitted within a time frame. "The Liberhan Commission was instituted in December 1992. But Justice

months or years. If it drags on for too long then evidence disappears and witnesses get pressured. Ultimately, justice will be denied," he adds. Tulsi had represented the Gujarat Government in the Sohrabuddin Sheikh fake encounter case, but had quit in protest over Chief Minister Narendra Modi's remarks defending the killing.

In fact, Gujarat illustrates how political manipulation can render inquiries toothless. Referring to the Justice Nanavati inquiry into the Godhra train fire, Tulsi says that it

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"Any inquiry must be concluded in a matter of weeks, not months or years. It should be speedy."

K.T.S. TULSI,
Senior Advocate



Srikrishna Commission

Justice Srikrishna took five years to submit his report on the 1992-93 Mumbai riots but his findings have neither been accepted nor acted upon.

and its report is not binding on the government. Against that background, do such commissions serve any purpose? Former chief justice of India (CJI) V.N. Khare thinks not. "Commissions of inquiry should be scrapped. They are giving a bad name to the judicial process," he says. According to him, judicial inquiries are instituted to shield the actions of the accused. "If there is an inquiry into the Batla House incident, it will be to ensure that the public forgets it," he adds. The other uncom-

Liberhan hasn't come out with anything. At this stage, who is interested in his report?" he asks. Verma had headed the inquiry to probe whether there was any intelligence failure leading to the assassination of former prime minister Rajiv Gandhi. He had given his report in less than three months.

Senior Supreme Court advocate and former additional solicitor general K.T.S. Tulsi agrees. "Speed is the essence. An inquiry must be concluded in a matter of weeks, not

only ended up obfuscating the issue and the Government losing credibility. Two separate inquiry commissions, Justice Banerjee's set up by Railway Minister Lalu Prasad and Justice Nanavati's by the Gujarat Government, probed the Godhra train fire. Their findings differed. While Justice Banerjee said that the fire was accidental, Justice Nanavati claimed it was the result of a planned conspiracy. Khare calls Justice Nanavati's green chit to the Gujarat Government unfortunate. According

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